

25VECV02337 25VECV02337

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-28

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Case Number: 25VECV02337 Hearing Date: July 28, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

RIGOBERTO MENDOZA, an individual,

Plaintiff,

vs.

FCA US, LLC; HUNTER DODGE CHRYSLER JEEP RAM FIAT; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 25VECV02337

[TENTATIVE] RULING RE: PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES

Dept. U

8:30 a.m.

July 28, 2026

BACKGROUND

This case is a lemon law action.

On April 25, 2025, Plaintiff Rigoberto Mendoza filed his complaint against Defendants FCA US LLC ("FCA") and Hunter Dodge Chrysler Jeep Ram Fiat.

On December 2, 2025, the Court overruled in part and sustained in part Defendants' demurrer to the complaint.

On January 26, 2026, Defendants filed their answers to the complaint.

On May 22, 2026, Plaintiff filed his motion to compel initial disclosures under Code of Civil Procedure section 871.26.

On July 15, 2026, FCA filed its opposition brief.

As of 5:00 P.M. on July 22, 2026, Plaintiff had filed no reply brief.

RULING

The motion is denied.

LEGAL STANDARD

“Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” Code Civ. Proc., § 871.26 (b).

DISCUSSION

Plaintiff moves to compel initial disclosures under Code of Civil Procedure section 871.26.

Plaintiff's attorney's declaration concedes that FCA already provided initial disclosures. Plaintiff found those disclosures insufficient. (See Rucker decl., ¶ 4.)

The cited statute provides no mechanism for trial court intervention where the demanding party takes the position that initial disclosures are insufficient. There is no provision stating that a party may move to compel initial disclosures, let alone that a party may move to compel further disclosures. While the statute provides for sanctions under subsection (j), that provision of the statute is most naturally read to mean that sanctions shall apply where no initial disclosures are provided whatsoever. Where, as here, there is a dispute as to the sufficiency of initial disclosures, there is no statutory mechanism for the trial court to evaluate the sufficiency of disclosures to determine whether sanctions should apply.

Even if the statute directed the trial court to evaluate the sufficiency of disclosures (it does not), Plaintiff has not provided the text of FCA's initial disclosures for the Court to review.

The motion is denied. No sanctions will issue.

CONCLUSION

The Court DENIES Plaintiff's motion to compel initial disclosures.

FCA is ORDERED to give notice.

DATED: July 28, 2026 _____

Lee S. Arian, LASC Judge